

REGISTER OF WAGE DETERMINATION UNDER		U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT		EMPLOYMENT STANDARDS ADMINISTRATION
By direction of the Secretary		WAGE AND HOUR DIVISION
of Labor		WASHINGTON D.C. 20210
		Wage Determination No.: CBA-2022-182
Diane Koplewski	Division of	Revision No.: 0
Director	Wage Determinations	Date Of Last Revision: 03/29/2022

State: Virginia

Area: King George

Employed on DEPT OF THE NAVY NAV FAC ENG CMD contract for REGIONAL 8(a) CUSTODIAL SERVICES FOR NAVAL DISTRICT WASHINGTON.

Collective Bargaining Agreement between contractor: NJS Joint Venture, LLC, and
union: AMERICAN FEDERATION OF GOVERNMENT EMPLOYEES AFL-CIO Local 2096, effective 04/12/2021 through 03/30/2024.

In accordance with Section 2(a) and 4(c) of the Service Contract Act, as amended,
employees employed by the contractor(s) in performing services covered by the
Collective Bargaining Agreement(s) are to be paid wage rates and fringe benefits
set forth in the current collective bargaining agreement and modified extension
agreement(s).

COLLECTIVE BARGAINING AGREEMENT

BETWEEN

**AMERICAN FEDERATION OF GOVERNMENT
EMPLOYEES, LOCAL 2096, AFL-CIO**

AND

NJS, JOINT VENTURE, LLC

**LOCATION: NAVAL SURFACE WARFARE CENTER AT
DAHLGREN, VIRGINIA**

EFFECTIVE: APRIL 1, 2021

EXPIRES: MARCH 30, 2024

PREAMBLE

This Agreement is entered into as of April 1, 2021 by and between NJS, Joint Venture (“NJS”) and American Federation of Government Employees, Local 2096 AFL-CIO (“Union”). As used hereinafter in this agreement, the term "Employer" or “Company” shall mean the legal entities that comprise NJS, which are J&J Maintenance, Inc. d/b/a J&J Worldwide Services, Inc. and Nugate Group, LLC.

WITNESSETH

WHEREAS, THE UNION HAS BEEN DESIGNATED-BY THE CUSTODIAL EMPLOYEES OF THE EMPLOYER AS THEIR SOLE COLLECTIVE BARGAINING AGENT WITH RESPECT TO WAGES, HOURS AND OTHER CONDITIONS OF EMPLOYMENT, AND WHEREAS, THE PARTIES DESIRE TO ESTABLISH HARMONIOUS RELATIONS AND TO PROVIDE A PEACEFUL METHOD FOR THE ADJUSTMENT OF ANY DISPUTES AND GRIEVANCE WHICH MAY ARISE, AND TO THE END THAT CONTINUOUS AND EFFICIENT SERVICE MAY BE RENDERED BY BOTH PARTIES AND FOR THE MUTUAL BENEFITS OF BOTH, IT IS HEREBY AGREED AS FOLLOWS.

ARTICLE I

RECOGNITION

- A. The Employer recognizes the Union as the Exclusive Bargaining Agent for all full-time, regular part-time, and on-call custodial employees employed by the Employer at its Dahlgren (Naval Surface Warfare Center, Dahlgren Laboratory, Dahlgren, Virginia) location but excluding all office clerical employees, guards and supervisors.
- B. Full-time employees are persons who are hired to work for 30 hours per week or more and not included any other category

Regular part-time employees are persons who are hired to work on a regular tour of less than 30 hours per week. There is no guarantee of hours in a day or a week.

On-Call employees are persons who are hired for the following reasons:

- (a) to replace on a daily "as needed" basis an absent regular full-time employee or an absent regular part-time employee; or
- (b) to replace for a designated period an employee (day or night shift) who will be on extended leave

Temporary employees are persons who are hired to perform special work assignments

or catch up work

ARTICLE II

WAGES, HEALTH & WELFARE

A. Wages

Employee base wage rates shall be as follows:

Effective, April 1, 2021 – All employees shall earn \$16.10 per hour

Effective, April 1, 2022 – 1.5% increase to base wage rates

Effective, April 1, 2023 – 1.5% increase to base wage rates

B. Health & Welfare

Employees shall be eligible to participate in their employer's health and welfare cafeteria plans (either J&J Worldwide Services or Nugate Group LLC's plan, depending on who their employer is), subject to the terms and conditions of such plans and applicable law. The Employer agrees to make contributions for each employee toward the applicable employer's health and welfare cafeteria plan in the amount of:

Effective April 1, 2021: \$4.80 per compensated hour per employee

Effective April 1, 2022: \$4.85 per compensated hour per employee

Effective April 1, 2023: \$4.90 per compensated hour per employee

Contributions will be made and benefits provided on an individual employee, not an average cost, basis. Additionally, the Employer contributions per compensated hour per employee above is capped at 40 hours per week.

If the Employer's contributions for health and welfare equals less than the total premium amount(s) owed for insurance for an employee, that employee shall be responsible for paying the difference through a payroll deduction. If an employee opts out of any of the benefits in the health and welfare cafeteria plans resulting in overage, or if the Employer's contributions for health and welfare equals more than the total premium amount(s) owed for an employee elected benefits, such overages, in the case of Nugate, shall be allocated to cash payments each pay period, and in the case of J&J, the employee will elect whether it shall be allocated to cash payments or that employee's 401(k) plan with the Employer, subject to the terms and conditions of such plans and applicable law. If J&J employees do not make an election, the health and welfare contribution shall be paid into the employee's 401(k).

Employees must enroll in health and welfare benefits during open enrollment or other qualifying events pursuant to the terms of the Health & Welfare Plan and applicable law. The Parties recognize that the Employer retains the unilateral right to modify, change or otherwise amend its Health and Welfare plan, including but not limited to, plan providers,

the types of coverage offered, the terms and conditions of the plan, and the premium payments. Upon the Union's request, the Employer agrees to offer the Union the opportunity to discuss the effects on bargaining unit employees of any material changes to the Health and Welfare Plan.

ARTICLE III

HOURS OF WORK

- A. Overtime. All work performed in excess of forty (40) working hours in any work week by employees shall be considered over-time and shall be compensated at the base rate one and one-half of their regular rate of pay for such a job. If an employee works a seventh consecutive day, that employee shall receive double time for all hours worked on the seventh consecutive day, provided they exceed forty (40) working hours for that week.
- B. For the purpose of this Agreement, a week shall be defined as a calendar week from Sunday through Saturday, but a day shall be defined as any twenty-four (24) hour period beginning when the employee reports to work.
- C. In the event employees of the unit are prevented from reporting to work per their scheduled tour of duty by order of competent government authority for reasons of security, declaration of emergency or lapse of government appropriation; the Employer agrees to permit affected employees to use paid (Vacation/Sick) and or unpaid leave to cover the period of absence. In the event the Employer receives reimbursement for the closure, the employees shall also be reimbursed. Government shutdowns are beyond the Company's control, therefore an advance notice to the employees will be provided as soon as practical.

ARTICLE IV

HOLIDAYS

- A. The Employer shall grant to all employees who have completed their probationary period the following holidays off with pay, provided the employee has worked or been in a pay status with the permission of the Company on the working day prior to the holiday and the day following the holidays.

New Years Day

Columbus Day

President's Day

Veteran's Day

Martin Luther King's Birthday

Thanksgiving Day

July 4th

Christmas Day

Labor Day

Memorial Day

- B. Should it be necessary for an employee to work on any of the holidays to which he or she is entitled, he or she shall receive an additional days pay at straight time provided he or she

shall have been in a pay status either on the working day prior to the holiday or the working day following the holiday, unless excused by the Employer. Eligible employees who are required by the Company to work on a holiday within their regular work week will receive the same pay they normally receive on a regular work day plus the pay they would normally be entitled to for the holiday provided however, there shall be no pyramiding of the holiday pay in determining the overtime rate for overtime performed on any such day. In addition, during any week that a holiday falls, overtime eligibility will be calculated only on actual hours worked.

- C. "Holiday", as used in this Agreement, means the day on which the holiday is observed, whether it is the day on which the holiday falls or another day designated for its observance. The Company may substitute for any of the named holidays, a different day with pay, provided however, that the Company shall give reasonable advance notice to the employees and the Union.
- D. Any additional holidays that federal employees are granted will be grant to our employees, provided the facility is closed to the Employer's employees and the Employer is not required to perform work on the contract.

ARTICLE V

VACATION

- A. Employees shall receive paid vacation based on the following schedule:

<u>YEARS OF SERVICE</u>	<u>DAYS OF PAID VACATION</u>
0 - 4 years	12 days (Prorated for new hires in first year)
5 - 14 years	15 days
15 years	20 days

- B. Vacation shall be with pay at the Employee's current hourly rate of pay, based on the regularly scheduled number of hours worked per day. Each Employee shall be given vacation at the time mutually agreed upon by the Employee and the Employer. The Employer in determining vacation preference shall consider seniority. Once the vacation period is authorized and scheduled, the time for taking such vacation shall not be changed unless the change is requested by the employee.
- C. Vacation is earned on the employee's anniversary date. There is no accrual or vesting of vacation prior to the employee's anniversary date.
- D. Length of service includes the whole span of continuous service with the present (successor) contractor wherever employed, and with predecessor contractor in the performance of similar work at the same federal facility. Employees have to give at least thirty (30) days advanced notice to management for vacation with pay.

- E. When a holiday occurs during the Employee's vacation, the holiday will be paid as holiday pay not as vacation pay.
- F. The Employee may use vacation leave in increments of less than one week for personal business or extended sick leave in which case it can be taken in one hour increments. Vacation time shall be used for extended sick leave once the Employee has used up his/her accrued sick leave and personal days. The Employer reserves the right to request medical documentation when vacation time is used for extended sick leave. The Employee's request for vacation leave shall not be unreasonably denied provided the Employee notifies the Employer in a timely manner.
- G. The Employer agrees to pay all employees for all unused earned vacation following separation.

ARTICLE VI

Sick Leave & Personal Days

- A. All employees shall be entitled to accrue paid sick leave at the rate of 1 hour of paid sick leave for every 30 hours worked. Employees may accrue a maximum of 56 hours of paid sick leave each accrual year. For purposes of this policy, the accrual year is the 12-month period beginning on January 1. Employees may carryover up to 56 hours of accrued, unused paid sick leave from one accrual year to the next. Employees may have a maximum of 56 accrued hours of paid sick leave available at any point in time. If an employee accrues 56 hours of paid sick leave, the Employee will stop accruing paid sick leave until the employee uses paid sick leave and the balance drops below 56 hours. Accrued but unused sick leave hours are not paid out at the end of the year and are not paid out upon separation of employment for any reason; however, employees will have accrued, unused paid sick leave reinstated if they are rehired by the employer within 12 months after job separation.
- B. An Employee may use paid sick leave for an absence resulting from the following:
 - The Employee's own physical or mental illness, injury, or medical condition;
 - Obtaining diagnosis, care, or preventive care from a health care provider by the Employee;
 - Caring for the Employee's family member with a physical or mental illness, injury, or medical condition or for obtaining diagnosis, care or preventative care from a health care provider by the family member, or the family member is otherwise in need of care;
 - Domestic violence, sexual assault, or stalking, where the Employee or a family member is a victim, including to obtain counseling, seek relocation, seek assistance from a victim services organization, or take legal action.

For purposes of this policy, "family member" shall include the Employee's child, parent, spouse, domestic partner, or any other individual related by blood or affinity whose close

association with the Employee is the equivalent of a family relationship.

Employees must use paid sick leave in 1-hour increments.

Employees will receive regular pay and benefits when using paid sick leave, but Employees will not continue to earn additional paid sick leave during that time.

If the need for leave is for preventative care or is otherwise foreseeable, the Employee is encouraged to make reasonable efforts to schedule absences so as not to unduly disrupt operations.

If an Employee with accrued paid sick leave takes leave under the Family and Medical Leave Act policy, all accrued paid sick leave must be used before leave is unpaid. Paid sick leave will run concurrently with Family and Medical Leave.

All unused sick leave and/or earned vacation must be used before an employee will be permitted to use unpaid leave for any reason within the year. There will be no carry over other than in Section A above, and no pay out of unused sick leave.

- C. An Employee requesting sick leave for the reasons in Section B must contact the Employer by contacting their direct supervisor and informing him/her of the need for leave for a purpose described in this policy and the anticipated duration of the leave, if reasonably feasible. The Employee shall make a good faith effort to provide a reasonable estimate of the length of the requested absence. When an Employee wants to use accrued paid sick leave and the reason for the absence is foreseeable, the Employee must request the leave at least 7 calendar days in advance of the absence. When the need for the absence is not foreseeable, Employees must request to use accrued paid sick leave as soon as practicable, which in most cases should be at least one (1) hour before the start of the Employee's shift.
- D. When an Employee is absent for 3 or more consecutive full days, the employee must provide certification or documentation from a health care provider. If the paid sick leave is used for an absence resulting from domestic violence, sexual assault or stalking, documentation may be from a health care provider, counselor, victim representative, attorney, clergy member, family member, or close friend; and self-certification is also permitted.

All medical documentation and documents related to domestic violence, sexual assault and stalking will be kept confidential unless disclosure is required or permitted by law.

An Employee who does not provide medical certification that he/she is able to return to work, if required or requested under this Article, will not be permitted to return to work.

- E. In addition to the paid sick leave described in this Article, all Employees who regularly works 7 hours or less a day will receive four (4) personal days and all Employees who regularly work 7.5 hours a day or more will receive five (5) personal days, which shall be provided to Employees on January 1 of each year and paid based on the regular number of hours an employee works per day. For purposes of this provision, the Employer shall

determine an Employee's regular work hours on January 1 of each year by averaging the number of hours the Employee worked over the six month period of July 1 to December 31. If an Employee did not work for the Employer for that entire six month period, the calculation will be based on whatever period of time the Employee worked during that six month period. Employees hired mid-year (i.e. after January 1) shall receive a prorated amount of four (4) personal days for the calendar year in which they are hired.

Personal days may be used for any reason and are subject to management approval, which shall not be unreasonably denied. An Employee who uses personal days must provide the Employer with notice of his/her anticipated absence as soon as practicable once it becomes known to the employee, regardless of the length of the anticipated absence. Generally, this should be no later than one (1) hour prior to the start of their shift. Failure to provide such notice may result in disciplinary action and in the forfeiture of personal days in an amount equal to the time the Employee was absent.

Accrued but unused personal days do not carryover from year-to-year and are not paid out at the end of the year or upon separation of employment for any reason. Employees who are absent for reasons other than vacation or a leave of absence must notify the Employer at the time of calling-out whether they intend to use personal days or sick days to cover their absence. If the Employee does not specify, personal days will be designated first. If an Employee is absent for more than three days for illness or injury, the employee must provide certification or documentation from a health care provider. Upon reasonable request, the Employer reserves the right to require a physician's statement for absences due to illness or injury and/or to require the Employee to be examined by an Employer-appointed physician at the Employer's expense. An Employee who does not provide medical certification that he/she is able to return to work, if required or requested under this Article, will not be permitted to return to work.

- F. All unused sick leave, personal days, and/or earned vacation must be used before an employee will be permitted to use unpaid leave for any reason within the year.
- G. Engaging in fraud in connection with paid sick leave, personal leave, and/or obtaining paid sick leave under false pretenses may result in discipline up to and including termination of employment.

ARTICLE VII

LEAVE OF ABSENCE

- A. A leave of Absence without pay for good cause for an employee's medical condition may be granted to employees by the Employer for a period up to ninety (90) days- with extensions at the discretion of the Employer, or as otherwise required by applicable law. For all leaves approved by the Company, the employees shall retain their seniority as of the beginning date of the leave. During this period of absence the employee will not accrue annual vacation leave or sick leave.

ARTICLE VIII

LENGTH OF SERVICE

- A. The employee's length of service shall be computed from the date on which he is hired. Seniority is defined as the length of time an employee has continuously been employed in any capacity minus periods of leave of absence, except breaks in service caused by resignation, discharge for cause, absence exceeding a period for which permission has been granted, or absence exceeding six (6) months because of lay off.

Any break in service where reinstatement has occurred shall be deemed as continuous employment but, any employee whose service has been broken as in the above exceptions and who is rehired shall have his/her length of service computer from the date of rehire.

ARTICLE IX

UNION SHOP/HIRING

- A. Each employee who is a member of the Union or who is obligated to tender to the Union amounts equal to periodic dues on the effective date of this Agreement, or who later becomes a member, and all employees entering into the bargaining unit on or after the effective date of this Agreement, shall, to the extent permitted by applicable law, as a condition of employment, pay or tender to the Union amounts equal to the periodic dues applicable to members, for the period from such effective date or, in the case of employees entering into the bargaining unit after the effective date, on or after the thirtieth day after such entrance, whichever of these dates is later, until the termination of this Agreement.* For the purpose of this Article, "employee" shall mean any person described in Article 1, Section B who enters into the bargaining unit.

Each employee who is a member of the bargaining unit on or before the effective date of this Agreement and who on the effective date of this Agreement was not required as a condition of employment to pay or tender to the Union amounts equal to the periodic dues applicable to members, shall, to the extent permitted by applicable law, as a condition of employment, pay or tender to the Union amounts equal to the periodic dues applicable to members for the period beginning 30 days after the effective date of this Agreement, until the termination of this Agreement.

- B. The condition of employment specified above shall not apply during periods of formal separation** from the bargaining unit by any such employee but shall reapply to such employee on the thirtieth day following his return to the bargaining unit.
- C. Each new employee shall, within the first fourteen (14) days of employment, sign and return to the Company Human Resources Department a written assignment authorizing the deduction of initiation fees, regular membership dues or amounts equivalent thereto, and/or assessments.

- D. Deductions for union dues or amounts equivalent thereto, and assessments shall be paid to the AFGE L2096 not later than the 20th day of each succeeding month.
- E. Within the terms of this Article IX, the Union agrees to indemnify, hold harmless, or take other steps requested by the Employer to protect the Employer from any and all claims and disputes related to Union dues.

* Where permitted by law.

**The term "formal separation" includes transfers out of the bargaining unit, removal from the payroll of the Company, and leaves of absence of more than one month duration.

ARTICLE X

EMPLOYMENT, DISCIPLINE AND DISCHARGE

- A. The Employer reserves the sole right to make final determination of the qualifications of any applicant for employment prior to such employment or during the probationary period of new employees.
- B. The probationary period for new employees shall be three (3) months, at the expiration of which the employee shall be placed on employment rolls and then may not be disciplined or discharged except for just cause.
- C. In case of increases or decreases of the working force, the rule of seniority shall prevail, that is, the last employee hired shall be the first to be laid off, and vice versa when recalled for service. The parties to the Agreement realize that it will not be feasible in all instances to lay off and recall on the basis of seniority because of the specific training and experience required in some classifications. The Employer may deviate from strict seniority in some instances, after consultation with the Union, but it is the intention of this clause to provide maximum protection for seniority. Probationary employees shall not be entitled to any seniority, but when they become regular employees their length of service shall date from their original date of hire. Continuous length of service shall be broken and the employment relationship terminated by resignation, discharge for cause, absence exceeding a period for which permission has been granted, or absence exceeding six (6) months because of layoff.
- D. In the event of reduction in force, the Employer will immediately notify the Union when the decision is made. Employees scheduled to be laid off shall be given two weeks' notice. Employees laid off shall be placed on a rehire list according to seniority for a period of six (6) months and shall be rehired before any new employees are engaged. The furloughed employee must meet the qualification standards for the vacant position. All employees are required to keep the Company informed of their current address and telephone number.
- E. The Employer shall not discipline or discharge any employee except for just cause. The Employer agrees to immediately notify the Union in the event of any discharges. Upon

termination, an employee or the Union is entitled to receive, at their request, a written reason for the termination.

Addendum:

Just cause for discipline shall include, but not be limited to employees:

- (1) Intentional failure or refusal to follow work schedule
- (2) Being out of work area during work hours except when on break or when excused by a supervisor;
- (3) Failure to report for work and not calling in one hour prior to the employee's scheduled start time, except in cases of a bona fide emergency in which case advanced notice should be provided as soon as reasonably possible . and speaking directly with someone in management.

The only exceptions to this rule are:

A. No one from management answers during that time period, in that instance, a voice message will be acceptable

B. The employee is incapable for speaking for himself/herself

- (4) Dishonesty, gross misconduct or neglect.
- (5) Absenteeism or tardiness, including leaving work early
- (6) Violation of the Employer's Zero Tolerance Policy (e.g. discrimination, anti-harassment, workplace violence, and serious safety violations policies)
- (7) Violation of the Employer's Sleeping on the Job Policy

In cases of dishonesty, gross misconduct neglect, sleeping on the job, or violation of the Employer's Zero Tolerance policies, employees may be discharged immediately. With respect to other infractions, employees shall be subjects to written reprimands for their first and second infractions and to suspension for their third infraction and discharge for the fourth infraction. The progressive discipline can be any combination of infractions. The Union President, upon request, shall be given a copy of written reprimands, suspensions or discharges. Reprimands older than twelve (12) months shall not serve as the basis for future disciplinary action, however such reprimands may remain in the employee's personnel file.

Except in situations involving a directive of the government, the Employer will conduct an investigation prior to discharging an employee. The employees shall cooperate with the

Employer's investigation. At the Employer's discretion, the Employer may suspend the employee pending the investigation. Such suspension pending an investigation shall not be considered disciplinary and the employee will receive full pay and benefits during the suspension.

- F. Any grievance relative to a discharge must be filed with the Employer within ten (10) working days from the date of notice discharge. If the grievance is filed within the ten (10) working day period, the Union will go directly to Step 3 of the Grievance Procedure and from then on the procedure shall be the same as outlined in the Grievance Procedure.

ARTICLE XI

GRIEVANCE PROCEDURE AND ARBITRATION

- A. Should the Union or any employee, have any grievance, dispute or disagreement arising out of the interpretation, application of breach of any of the terms of this Agreement, or any matter relating to working conditions, such as grievance, dispute or disagreement shall be settled in the following manner:

TIME LIMITS: Except for payroll adjustments, any dispute or grievance must be presented in writing to the Employer (notice shall be via email to both the immediate supervisor **AND** the Employer's Corporate Human Resources Director) within (10) work days following the event giving rise to the grievance. Failure to submit a grievance within the prescribed time limits will, on its face, make the grievance untimely.

GRIEVANCE STEPS:

STEP 1. The aggrieved party is to present the grievance in writing to the Union steward, and they may together discuss it with the employee's immediate supervisor verbally. The supervisor or supervisor's designee shall give an answer not later than ten (10) working days after receiving the written grievance. Grievances shall be handled without unnecessary interruption or cessation of work.

STEP 2: If the matter is not settled in accordance with Step 1, within ten (10) working days after the supervisor's or designee's answer or the due date for that answer, the Union may move the grievance to Step 2 by presenting the grievance, in writing, to the Employer's Corporate Human Resources Director. The written grievance must contain the complete factual basis of the grievance. Within ten (10) working days from the time the Union submits the written grievance, a designated representative of the Union shall meet with a designated representative of the Company and they shall make every effort to settle the dispute. If the matter is not settled, the Employer's Corporate Human Resources Director or other designated representative of the Company will issue a written decision within ten (10) working days after the meeting if this Step takes place.

STEP 3. If the matter is not settled in accordance with Step 2, the Union may, within ten (10) working days following the end of the Step 2 procedure, move the grievance to Step 3 by presenting the grievance in writing to the President of the Company and the Employer's Corporate Human Resources Director. The President or designated representative of the Company will arrange for a meeting with the Union or will notify the Union of the Company's decision, in writing, within ten (10) working days of the presentation of the written grievance.

STEP 4 If the matter is not settled in accordance with the procedures in Steps One through Three above, the moving party shall, in writing, within ten (10) working days, request the Federal Mediation and Conciliation Service to submit to the parties a list of seven (7) arbitrators from which the parties shall alternately cross off one name after another until only one name remains, and such person will be the arbitrator. This procedure shall take place in the Employers local office at Dahlgren or, if that is not feasible. It shall occur by telephone between the Union President or designee and the Employer's Corporate Human Resources Director of the Company or designee. The parties will conduct a coin toss to determine which will be the first to cross off an arbitrator. The parties may make that determination either as the need arises or, for convenience, may perform several coin tosses at one meeting to determine who will cross off first for future cases which may arise.

- B. Should the Company have any grievance or dispute or disagreement arising out of the interpretation, application or breach of any of the terms of the Agreement or any matter relating to hours or working conditions, such grievance, dispute or disagreement shall be settled in the following manner.

STEP 1. The grievance shall be presented to the President of the Union or their designee within ten (10) working days following the event that gives rise to the grievance.

STEP 2. If the matter is not settled in accordance with Step 1 within ten (10) working days, and the Employer may within ten (10) working days following the end of Step 1 procedure request arbitration in accordance with the procedure of Step 4 of Section A of Article XI.

- C. The arbitrator shall not have the authority to alter, amend or change the terms or provisions of this Agreement, and his decision shall be limited to the particular grievance in question. The arbitration decision shall be final and binding on the Parties. The Union and the Company shall equally share the expenses and fees of the arbitrator. Each party shall be responsible for its own expenses in connection with the arbitration, including transcription costs.
- D. All time limits prescribed herein may be extended by mutual agreement by the Company and the Union. Failure of the Union, employee or the company to present the grievance to the next step within the time limits of this Article, shall constitute a basis for denying the

grievance.

ARTICLE XII

NO STRIKE AND NO LOCKOUT

- A. The Employer agrees not to cause, permit, or engage in any lockout of its employees during the term of the Agreement except for the refusal of the Union to carry out the award of arbitration rendered pursuant to Article XI. The Union agrees that neither it nor the employees it represents hereunder individually or collectively will, during the term of this Agreement, cause, permit or take part in any strike, picketing, sit-down, stand in, slow down, or curtailment or restriction of production or interference with work in or about the Employer's premises, except for refusal of the Employer to carry out the award of an arbitration rendered pursuant to Article XI.

ARTICLE XIII

MISCELLANEOUS

- A. The Employer agrees not to enter into any other agreement or contract with its' employees, individually or collectively, which in any way conflicts with the terms and provisions of this Agreement.
- B. The Employer shall comply with all labor laws dealing with the safety and health of its employees, and provide to its employees any safety equipment required in their respective work areas. A safety meeting will be held on Company time when requested by a party, but not more than twice a year unless agreed to by both parties.
- C. In the event an employee is absent from work three (3) consecutive work days and fails to call in or send word of the nature of their absences, he/she will be terminated with cause as a '3 day quit' effective the end of the shift on the third day of absence.
- D. Employees who are absent from work except for holidays and annual vacation leave must give the Company 24 hours' notice of when they will return to work. This provision is for the purpose of work scheduling.
- E. Employees will be excused for tardiness of up to two (2) hours, for adverse weather conditions, provided the employee informs their supervisor by phone at least one (1) hour prior to their scheduled start time or as soon as possible and no later than upon arrival to work in the case of a bona fide emergency, the employee explains the reason for their tardiness to the supervisor and the supervisor accepts the excuse as valid and legitimate.

- F. Employees are expected to report to work in a timely fashion and repeated instances of unexcused tardiness will be dealt with according to the Company's discipline policy in effect at the time of this agreement.
- G. The Employer's premises will be open at least 15 minutes before and after every shift change. Employee are prohibited from clocking in or out more than 5 minutes early.
- H. Full-time employees will be allowed to take, on Company time, a fifteen (15) minute break mid-morning and mid-afternoon. Part-time employees shall receive one fifteen (15) minute break. The employee will be permitted a 30 minute lunch break which will be considered off duty time. Employees are free to leave the worksite and are not considered on duty during their paid break and unpaid lunch and are not covered by the Employer's Sleeping on the Job Policy when they are on break and in their car. Employees must return to duty at the end of their breaks and lunch break.
- I. Bereavement Leave. Employees will be excused, with pay, for up to three (3) days due to a death in the immediate family. Immediate family is defined as; parent, child, brother, sister, spouse, grandmother, grandfather or grandchildren. Employees will be paid based on their normal scheduled hours.
- J. The check stub will be annotated to show: hours worked, annual vacation leave accrued balances; sick leave accrued balances, gross pay, deductions and net pay.
- K. Emergency messages to an employee will be delivered promptly. Any supervisor will deliver an emergency message to any employee whether under his/her supervision or not.
- L. Except for emergency changes in workload, whenever there is an increased number of work hours available, seniority of qualified employees, as determined by the Company, will be used in assignment of those hours. This provision is intended to allow senior employees, who so wish, to work an increased number of hours. Likewise, when a work location becomes available for which employees may wish to bid, seniority will be used in allowing employees with the most seniority to be assigned the available work location. This provision is intended to allow senior employees to bid for more desirable work locations when they become available. The Company will post a notice of the availability of the new work location whenever such location becomes available and senior employees may bid for assignment to such location(s).
- M. In the event that a new permanent position is generated, it shall be filled through a competitive hiring process. It will be open to all qualifying, full-time and regular part-time employees. Applicants must have completed their probationary period to become eligible. It is the intention of this clause to ensure an equal opportunity to all full-time and regular

part-time employees to openly compete for positions, within the company, at the Dahlgren site. The new vacancy announcement shall be posted in a communal area and will include an open and close date with a minimum of three (3) working days to apply within. If a qualified employee is out for a full work week that covers the entirety of the posting of the vacancy announcement, the vacancy will remain posted for at least one day into the following work week. The announcement will include a description of duties, responsibilities and requirements necessary for consideration. The announcement will provide instructions to applicants that include where to send the application and who to address it to. Qualifications being a primary consideration, after which, if more than two internal applicants are equally qualified for the vacant position in the judgment of the Employer, seniority will be the deciding factor.

- N. Family Medical Leave. The Employer agrees to provide up to 12 weeks of unpaid leave to eligible employees to the extent required by the Family and Medical Leave Act (FMLA). Likewise, the Employer will provide for military leaves of absences to the extent required by USERRA.

ARTICLE XIV

EMPLOYEE'S RIGHTS

- A. The parties agree that in the interest of maintaining a congenial work environment, both supervisors and employees will deal with each other in a manner reflecting mutual respect.
- B. Employees will follow all instructions pertaining to their job given to them by their supervisors. Employees will give supervisors proper respect at all times. Supervisors will give employees proper respect at all times. Use of profanity or disrespect by employees to supervisors or supervisors to employees will not be condoned, and shall be considered grounds for disciplinary action, up to and including termination, of employees guilty of such conduct.

ARTICLE XV

INFORMATION

- A. Upon initial employment, the Employer shall furnish the Union the following information:
 - (1) Name
 - (2) Position
 - (3) Position description (to be furnished within sixty (60) days
 - (4) Date of hiring
- B. Within ten (10) working days of each change, the Employer will furnish the Union the following information for all unit employees hired, separated, transferred, or promoted:

- (1) Name
- (2) Position
- (3) Date action taken

ARTICLE XVI

UNION REPRESENTATION

- A. The Employer agrees to recognize a reasonable number of designated Steward Union Representative to handle appropriate matters including but not limited to grievances. The Union will furnish the Employer the name of the Shop Steward and any Union Business Representatives. This list will be kept current by the Union.
- B. The designated employee representatives shall have a reasonable amount of paid time during regular office hours to handle grievances and attend disciplinary meetings and other labor management matters, provided such activities are reasonable and there is no pattern of abuse. It is agreed, however, that designated employee representatives shall not be paid by the Employer for any time associated with attendance or participation in collective bargaining negotiations. .
- C. The Union agrees that it will not solicit grievances on Company time or space. In no way shall the representation of employees or the processing of grievances deliberately interfere with the performance of work or the fulfillment of the Company's obligation under its Government contract.
- D. The designated employee representatives shall not interfere with the management of the business or direct any work of any employee, but may advise the Company of any violation of the Agreement.
- E. Prior to leaving the work area the designated representatives will request permission from their immediate supervisor. The designated representatives will not leave work areas during rush or emergency situations.
- F. However, if rush or emergency situations exist, which prevent the designated employee representatives from leaving the work area, the immediate supervisor shall inform the employee representatives of the expected duration of the rush or emergency situation and a time when they can expect to be excused from their work areas to handle grievances and attend disciplinary meetings, and other labor management matters provided such activities are reasonable and do not demonstrate a pattern of abuse.

- G. Except as provided in the above sections of this Article, employees will conduct internal Union business during breaks or after working hours. "Internal Union Business" includes such things as for example, running or campaigning for Union office, collecting dues, attendance at Union meetings and such events which involve no direct interface with the Employer.
- H. Designated representatives must satisfy all security requirements imposed by the Government in order to gain access to a secure work site location. Non-employee representatives must provide advanced notice to the Employer before arriving at the facility. Designated representatives shall adhere to the base's safety and security policies while visiting the site.

ARTICLE VXII

JURY DUTY

- A. The Employer agrees that employees past their probationary period who are called upon for state or federal jury duty, and who by virtue of such duty, lose time from work, shall receive for each day of actual jury duty, regular pay and the jury pay received. The employee shall not be paid unless he/she furnishes the Employer with a certificate from the Clerk of Courts confirming the jury duty date and the amount of compensation received. The maximum compensation that can be derived from this Article annually is an amount equivalent to one weeks regular pay.
- B. Whenever the employee is temporarily excused from jury duty by the Court on his or her scheduled work day, he/she shall inform his/her supervisor as promptly as possible and stand by ready to report for work if requested by the Company and if there is more than half the shift remaining in the work day. The receipt of a subpoena or the notice to report for jury duty must be reported immediately to the appropriate supervisor and the Company may request that the employee be excused or exempted from such jury duty if, in the opinion of the Company, the employee's services are essential at the time of the proposed jury service.

ARTICLE XIII

NON-DISCRIMINATION

- A. The Employer and the Union agree not to unlawfully discriminate against any individual with respect to hiring, compensation, terms or conditions of employment and the Agreement because of such individual's race, color, religion, sex, national origin or age. The Union is hereby notified of the Company's equal employment requirements and posture as dictated by Executive Order 11246.

ARTICLE XIX

GOVERNMENT REQUIREMENTS:

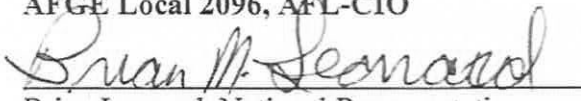
- A. The Union agrees to cooperate with the Employer in all matters required by the Government, and the Union recognizes that the term and conditions of the Agreement are subject to certain priorities which the Government may exercise. The Union agrees that any actions taken by the Employer pursuant to a requirement of the Government or at the direction of the Government shall not constitute a breach of this Agreement. Nothing in this Agreement should be construed to prevent institution of any change prior to discussion with the Union where immediate change is required by the Government. The Employer will, however, negotiate with the Union concerning the effects of any such material change.
- B. If the Government directs that a specific employee be removed from the contract or otherwise disciplined or reassigned, or any such action directed may be undertaken by the Employer and shall not subject to grievance or arbitration procedures of this Agreement. In the event that the Government expressly directs the removal, discipline or reassignment of a contract employee, the Employer agrees to cooperate with the Union by providing it with all relevant information.
- C. When practicable, the employer will provide reasonable advance written notice to the employee stating the specific reason(s) given by the government for the proposed action. If the Employer does not provide such notice, the sole remedy for the Employee and/or Union will be for the Employer to provide such notice as soon as practicable. The Union and Employer recognize that the Union reserves the right, within 30 calendar days of the government directive, to contact the government to request that the government reconsider its directive. The Union agrees to be respectful in any such communications with the government. Upon request of the Union, the Employer will provide to the Union the applicable Government point of contract regarding the issue.

ARTICLE XXI

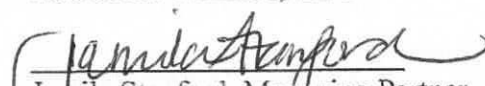
DURATION OF AGREEMENT

- A. This Agreement, entered into this 1st day of April 2021 shall remain in full force and effect until March 30, 2024 and shall continue in effect from year to year thereafter, unless written notice is given by the Union or the Employer ninety (90) days prior to the expiration date of its desire to modify, amend or terminate this Agreement.

AFGE Local 2096, AFL-CIO


Brian Leonard, National Representative
AFGE 4th District

NJS Joint Venture, LLC


Jamila Stanford, Managing Partner
NuGate Group, LLC

106 Knotline Road
New Bern, NC 28562
(843) 860-5236
leonab@afge.org

2/28/2021
DATE

619 N 1st Street
San Jose, CA 95112
(408) 278-9911
jamila@nugategroup.com

3/2/2021
DATE

Christopher Demers
Christopher Demers, Director of HR
J&J Worldwide Services

3/2/2021
DATE